

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 4153

By: Hasenbeck

COMMITTEE SUBSTITUTE

An Act relating to driver licenses; creating a requirement to demonstrate an eighth grade reading level for minors to obtain a driver license; establishing criteria for satisfying reading tester requirements for a driver license for public school students; requiring students under eighteen to complete a reading proficiency test; requiring a plan of remedial reading if assessments are not successfully completed; providing an option for students to take alternative reading proficiency tests if the initial assessment is unsuccessful; allowing students to take an alternative reading test for motorcycle licenses; establishing alternative reading testing sites requirements; requiring school districts to provide alternative documentation of reading proficiency if applicable; establishing alternative documentation requirements; allowing students to submit reading proficiency test results from other states; requiring the Department of Education to approve or disapprove out-of-state test results; creating requirement for documentation of school enrollment, completion, or lawful excuse for minors to obtain a driver license; requiring minors to demonstrate reading proficiency at an eighth-grade reading level unless excused; establishing exception for summer months; establishing documentation requirements for students educated by other means; establishing misdemeanor for violations; providing alternate route to obtain driver license for certain employed persons under eighteen; establishing employer fines for falsification; requiring attendance officers to provide documentation; requiring attendance officers to notify Service

1 Oklahoma of certain student withdrawals; requiring
2 notification of license cancellation in certain
3 circumstances; providing exceptions for notice
4 requirements; requiring school districts to provide
5 documentation of reading proficiency to certain
6 enrolled students; defining terms; providing
7 exceptions to reading proficiency requirements;
8 requiring Service Oklahoma to approve forms;
9 providing for codification; providing an effective
10 date; and declaring an emergency.

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12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 1210.515A of Title 70, unless
15 there is created a duplication in numbering, reads as follows:

16 A. Pursuant to the provisions of paragraph 2 of subsection A of
17 Section 2 of this act, any person under the age of eighteen (18)
18 years wishing to apply for a driver license or permit shall
19 successfully demonstrate a satisfactory reading ability at the
20 eighth-grade reading level by meeting the following criteria:

21 1. A student enrolled in a public school shall successfully
22 complete the reading portion of the statewide assessment
23 administered pursuant to Section 1210.508 of this title and that is
24 offered in the eighth grade. Following the administration of this
assessment in the eighth grade, any student not successfully
completing the reading portion shall be assigned a plan of remedial
reading. Any student not successful in completing the reading
portion of the state assessment may take a comparable alternative

1 reading proficiency test in order to satisfy the criteria for a
2 driver license or permit. Alternative reading proficiency tests
3 shall be approved by the State Department of Education. Subsequent
4 successful completion of an alternative reading proficiency test
5 shall serve to satisfy any retake requirement for the reading
6 portion of the state assessment in the eighth grade in the Oklahoma
7 School Testing Program. School districts shall notify, in writing,
8 each student who takes the reading portion of the state assessment
9 for the eighth grade or who takes an alternative reading proficiency
10 test and the student's parent or legal guardian of the results. If
11 the student fails to perform satisfactorily on the test, the notice
12 shall inform the student of the reading proficiency driver license
13 requirement and the school's remediation plan for the student. Upon
14 the student's successful completion of the test, the school shall
15 furnish the student with the documentation needed for the driver
16 license application in Oklahoma;

17 2. Unless alternatively documented according to the provisions
18 of subsection C of this section, students under the age of eighteen
19 (18) years shall successfully complete a reading proficiency test
20 approved by the State Department of Education; and

21 3. Any student who wishes to apply for a restricted license to
22 operate a motorcycle may take an alternative reading proficiency
23 test, subject to the provisions of this section.

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1 B. Alternative reading proficiency tests shall be offered by
2 testing sites, which shall include the public schools at least four
3 times per calendar year, and may include any of the following which
4 choose to participate: the technology center school districts,
5 Regional Education Service Centers, colleges, accredited private
6 schools, and other sites approved by the State Department of
7 Education. A student may take the test as often as wished, subject
8 to the provisions of this section. Testing sites shall provide the
9 first alternative reading proficiency test for each student at no
10 cost. Students may be assessed a fee not to exceed Twenty-five
11 Dollars (\$25.00) by the testing site for each subsequent alternative
12 reading proficiency test taken.

13 C. A school district shall provide for alternative
14 documentation of reading proficiency for the purposes of paragraph 2
15 of subsection A of Section 2 of this act for any student with an
16 Individualized Education Program (IEP) that, at a minimum, is in an
17 area related to reading. The alternative documentation shall be
18 furnished to such student who is performing satisfactorily in
19 reading pursuant to the Individualized Education Program of the
20 student. Parents of disabled students educated pursuant to the
21 provisions of Section 4 of Article XIII of the Oklahoma Constitution
22 may satisfy the requirement of paragraph 2 of subsection A of
23 Section 2 of this act by signing an affidavit that, based upon their
24 best information and belief, their child would qualify for an

1 Individualized Education Program that, at a minimum, is in an area
2 related to reading if enrolled in public school, and that in their
3 judgment their child is performing satisfactorily in reading and is
4 therefore academically qualified to satisfy the requirement of
5 paragraph 2 of subsection A of Section 2 of this act.

6 D. Any person under the age of eighteen (18) who has previously
7 completed and successfully passed a reading proficiency test from
8 another state may submit the results of such test to the State
9 Department of Education for verification and approval. The State
10 Department of Education shall have thirty (30) days from receipt of
11 the reading proficiency results submitted by the person to verify
12 that the reading proficiency requirements from the other state are
13 equivalent or comparable to the reading proficiency requirements
14 established for Oklahoma students pursuant to this section. Upon
15 verification and approval by the State Department of Education, the
16 Department shall furnish the person with the documentation needed
17 for the driver license application in Oklahoma. If the reading
18 proficiency documentation submitted by the person is disapproved by
19 the Department, the person may take an alternative reading
20 proficiency test as provided for in subsection B of this section.

21 SECTION 2. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 6-107.8 of Title 47, unless
23 there is created a duplication in numbering, reads as follows:
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1 A. Service Oklahoma shall deny a license, restricted license,
2 or instruction permit for the operation of a motor vehicle to any
3 person under eighteen (18) years of age who does not, at the time of
4 application, present documentation that such person:

5 1. Is a student enrolled in a public or private secondary
6 school, including any technology center school, of this state or any
7 other state;

8 2. Has received a diploma or certificate of completion issued
9 to the person from a secondary school of this state or any other
10 state;

11 3. Is enrolled and making satisfactory progress in a program
12 leading to a certificate of high school equivalency issued by the
13 State Department of Education, or has obtained such certificate;

14 4. Is excused from such requirement pursuant to a lawful excuse
15 as defined in subsection G of this section or due to circumstances
16 beyond the control of the person; or

17 5. Is excused from such requirement pursuant to subsection C of
18 this section; and

19 6. Has successfully passed the criterion-referenced reading
20 test required for all eighth grade students or an alternative
21 reading proficiency test approved by the State Department of
22 Education, pursuant to the provisions of Section 1 of this act,
23 demonstrating reading proficiency at the eighth-grade reading level,
24 unless such student is excused from such requirement pursuant to the

1 provisions of Section 1 of this act. Provided, during the summer
2 months when school is not in regular session, as established by the
3 school district pursuant to Section 1-109 of Title 70 of the
4 Oklahoma Statutes, a person under eighteen (18) years of age may
5 satisfy the documentation requirement of this subsection by
6 providing a notarized written statement from and signed by the legal
7 custodial parent or legal guardian of the person to Service Oklahoma
8 stating that the person completed the immediately previous school
9 year and is enrolled or intends to enroll for the immediately
10 subsequent school year.

11 B. 1. A person under eighteen (18) years of age who is
12 receiving education by other means, including education at home
13 pursuant to Section 4 of Article XIII of the Oklahoma Constitution,
14 shall satisfy the documentation requirement of paragraphs 1, 2, 3,
15 4, and 5 of subsection A of this section by providing a written
16 statement from and signed by the legal custodial parent or legal
17 guardian of the person to Service Oklahoma stating that the person
18 is receiving instruction by other means pursuant to Section 4 of
19 Article XIII of the Oklahoma Constitution.

20 2. Any person who falsifies the information required in such
21 documentation, upon conviction, shall be guilty of a misdemeanor.

22 C. 1. A person under eighteen (18) years of age who does not
23 meet the requirements of paragraphs 1 through 3 of subsection A of
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1 this section or the requirements of subsection B of this section may
2 retain or be issued a driver license if:

- 3 a. the person is employed at least twenty-four (24) hours
4 per week, and
- 5 b. the employer of the person verifies the employment on
6 a form prescribed by Service Oklahoma.

7 2. Any person who has retained or been issued a driver license
8 pursuant to this subsection who leaves such employment shall have
9 fifteen (15) days from the date of termination of employment to
10 provide verification of employment from a new employer.

11 3. Any employer who falsifies a verification of employment
12 shall be subject to an administrative fine of not more than Fifty
13 Dollars (\$50.00), to be assessed by Service Oklahoma.

14 D. 1. School district attendance officers, upon request, shall
15 provide a documentation of enrollment status form, established and
16 approved by Service Oklahoma, to any person under eighteen (18)
17 years of age who is properly enrolled in a school for which the
18 attendance officer is responsible, for presentation to Service
19 Oklahoma upon application for or reinstatement of an instruction
20 permit, restricted license, or license to operate a motor vehicle.

21 2. Except as provided in subsection E of this section, whenever
22 a person over fourteen (14) years of age and under eighteen (18)
23 years of age, who has a driver license or permit issued by Service
24 Oklahoma, withdraws from school, the attendance officer shall notify

1 Service Oklahoma of such withdrawal through a documentation of
2 enrollment status form.

3 3. Within fifteen (15) working days of the receipt of such
4 notice, Service Oklahoma shall provide written notice to the person,
5 by first class, postage prepaid mail, that the driver license of the
6 person will be canceled thirty (30) days following the date the
7 notice to the person was sent, unless documentation of compliance
8 with the provisions of this section is received by Service Oklahoma
9 before such time. After the thirty-day period, Service Oklahoma
10 shall cancel the driving privileges of the person.

11 E. When the withdrawal from school of a person under eighteen
12 (18) years of age is:

13 1. Due to circumstances beyond the control of the person;

14 2. Pursuant to any lawful excuse; or

15 3. For the purpose of transfer to another school, including
16 education at home pursuant to Section 4 of Article XIII of the
17 Oklahoma Constitution, as confirmed in writing by the legal
18 custodial parent or legal guardian of the person,
19 no notice as required by subsection D of this section shall be sent
20 to Service Oklahoma, or, if sent, such notice shall be disregarded
21 by Service Oklahoma. If the person is applying for a driver
22 license, restricted driver license, or instruction permit, the
23 attendance officer shall provide the person with documentation to
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1 present to Service Oklahoma to excuse the person from the
2 requirements of this section.

3 F. Every school district shall, upon request, provide
4 documentation of reading proficiency for any person under eighteen
5 (18) years of age enrolled in such school district by certifying
6 passage of a reading examination pursuant to the provisions of
7 Section 1 of this act.

8 G. As used in this section:

9 1. "Withdrawal" means more than ten (10) consecutive days, or
10 parts of days, of unexcused absences or fifteen (15) days, or parts
11 of days, total unexcused absences during a single semester;

12 2. "Lawful excuse" means absence from school pursuant to any
13 valid physical or mental illness or pursuant to any legal excuse as
14 provided in Section 10-105 of Title 70 of the Oklahoma Statutes;
15 provided, however, the meaning of such term shall not include
16 marriage;

17 3. "Circumstances beyond the control of the person" shall not
18 include marriage, suspension, or expulsion from school, or
19 imprisonment in a jail, penitentiary, or other correctional
20 institution;

21 4. "Documentation of enrollment status form" means the document
22 established and approved by Service Oklahoma to substantiate
23 information concerning the eligibility of a person under eighteen
24 (18) years of age to apply for or to retain a license or permit to

1 drive. Such documentation shall not include any information which
2 is considered an education record pursuant to the Family Education
3 Rights and Privacy Act, 20 U.S.C., Sections 1232g through 1232i,
4 unless compliance is made with the restrictions regarding disclosure
5 of the information; and

6 5. "Documentation of reading proficiency" means information
7 provided by a school authorized by subsection B of Section 1 of this
8 act to certify the eligibility of a person under eighteen (18) years
9 of age to apply for a license or permit based on passage of a
10 reading proficiency test approved by the State Department of
11 Education, or pursuant to the alternative documentation criteria
12 provided in subsection C of Section 1 of this act. Such
13 documentation shall not include any information which is considered
14 an education record pursuant to the Family Education Rights and
15 Privacy Act, 20 U.S.C., Sections 1232g through 1232i, unless
16 compliance is made with the restrictions regarding disclosure of the
17 information.

18 H. The provisions of this section shall be inapplicable with
19 respect to any person under eighteen (18) years of age upon whom
20 rights of majority have been conferred pursuant to Sections 91
21 through 94 of Title 10 of the Oklahoma Statutes.

22 I. Service Oklahoma shall establish and approve documentation
23 forms and certificates required by this section for use by school
24 districts to comply with the provisions of this section. Upon

1 establishment and approval of such forms and certificates, Service
2 Oklahoma shall notify each school district and the State Board of
3 Education of the content thereof.

4 SECTION 3. This act shall become effective July 1, 2026.

5 SECTION 4. It being immediately necessary for the preservation
6 of the public peace, health or safety, an emergency is hereby
7 declared to exist, by reason whereof this act shall take effect and
8 be in full force from and after its passage and approval.

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